

23-01335192	Defendants Tom Malloy Corp. dba Trench Shoring Company, and Mike Cara’s motion for summary judgment, or, alternatively, summary adjudication is DENIED. A party may move for summary judgment in an action if it is contended that the action has no merit or that there is no defense to the action. (Code Civ. Proc., § 437c, subd. (a)(1).) Similarly, a party may move for summary adjudication as to one or more causes of action within an action if the party contends that the cause of action has no merit. (Code Civ. Proc., § 437c, subd. (f)(1).) “A [defendant] has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., §437c, subdivision (p)(2).) Once that burden is met, the burden shifts to Plaintiff “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.) “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826 (“<i>Aguilar</i>”), 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (Id. at p. 851.) But, “pointing out the absence of evidence to support a plaintiff’s claim is insufficient to meet the moving defendant’s initial burden.” (<i>Gaggero v. Yura</i> (2003) 108 Cal.App.4th 884, 891.) “The defendant must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.” (Ibid, citing <i>Aguilar</i> at p. 855, fn. 23). Thus, if a moving defendant fails to meet their prima facie burden, the burden never shifts to plaintiff to show the existence of a triable issue of material fact. Here, Defendants move for summary judgment, or, alternatively, summary adjudication in their favor on the grounds that Plaintiff is barred from introducing expert testimony at trial because he failed to designate any experts and it is too late to do so now. First, pointing out the absence of evidence to support Plaintiff’s claim is insufficient to meet Defendants’ initial moving burden. (<i>Aguilar</i> at p. 854-855; <i>Gaggero v. Yura</i>, supra, 108 Cal.App.4th at p. 891.) Second, Defendants are incorrect that Plaintiff is barred from introducing expert testimony at trial. Trial in this matter was initially set for trial on 9/16/24. (ROA 24.) Trial and all related deadlines were then continued to 9/16/24 and again to 3/23/26. (ROA 33, 64.) Significantly, on 3/23/26, the Court vacated the jury trial and set a trial setting conference. (ROA 107.) Trial was subsequently set for 3/8/27. (ROA 117.) When the 3/23/26 trial date was “vacated” all trial related discovery deadlines, including expert discovery deadlines, were reset and calculated from the 3/8/27 trial date. Based on the 3/8/27 trial date, the time to make a demand for expert witness information or designate said experts has not elapsed. (See Code of Civ. Proc. § 2034.210, et seq.) Accordingly, Defendants have failed to establish that Plaintiff is barred from introducing expert testimony at trial set for 3/8/27.
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		Based upon the foregoing, Defendants have failed to meet their initial moving burden of persuasion. Because Defendants have not met their initial moving burden, the burden does not shift to Plaintiff to show the existence of a triable issue of material fact. Accordingly, the motion is DENIED. Moving Defendants to give notice.